

STATE OF NEW YORK

5443--A

2025-2026 Regular Sessions

IN ASSEMBLY

February 14, 2025

Introduced by M. of A. CHANDLER-WATERMAN, MEEKS, LUCAS, FORREST, BURROUGHS -- read once and referred to the Committee on Governmental Operations -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the executive law, in relation to reports and awards by the office of victim services

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Section 623 of the executive law is amended by adding a new subdivision 18-a to read as follows:

18-a. To publicize through the office, state, county, and municipal criminal justice agencies, statewide coalitions, victim service providers, survivor support agencies, hospitals, medical, mental health or other counseling service providers, local programs for crime victims, and other public or private agencies, the existence of the programs funded by the office, including the procedures for obtaining compensation from the office as defined in section six hundred twenty-five-a of this article.

§ 2. Subdivision 20 of section 623 of the executive law, as amended by chapter 489 of the laws of 2014, is amended to read as follows:

20. To render ~~[each year]~~ annually to the governor and ~~[to]~~ the legislature, and to the public via the office's website, on or before December first of each year, a written report on the office's activities including, but not limited to, specific information on each of the subdivisions of this section. ~~[Such]~~

(a) The annual report shall also include but not be limited to information regarding crime victim service programs, including:

~~[(1)]~~ (i) the programs funded by the office;

~~[(2)]~~ (ii) other sources of funding for crime victims service programs;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets ~~[-]~~ is old law to be omitted.

LBD08947-02-5

1 ~~[(3)]~~ (iii) an assessment of the adequacy of the current level of
2 appropriation to the office to meet the reasonable needs of crime
3 victims service programs for funding under section six hundred thirty-
4 one-a of this article; and

5 ~~[(4)]~~ (iv) an estimate of the reasonable needs of programs in the next
6 fiscal year.

7 (b) The annual report shall also include but not be limited to infor-
8 mation regarding the office's performance measures, including:

9 (i) The number of claim applications filed with the office;

10 (ii) The number of claims accepted, including disaggregated data
11 denoting the claims accepted by type, for eligibility determinations;

12 (iii) The number of claims rejected, including disaggregated data
13 denoting the categorical reasons for claims rejected;

14 (iv) The number of claims resulting in no award decisions, including
15 disaggregated data denoting the categorical reasons for no award deci-
16 sions;

17 (v) The number of claims awarded, including disaggregated data denot-
18 ing the claim type for claims awarded;

19 (vi) Anonymized data denoting the race, gender, age, sexual orien-
20 tation, and county of residence for claim applications filed, claims
21 accepted, claims rejected, claims resulting in no award decisions, and
22 claims awarded;

23 (vii) Anonymized data denoting the crime involved in claim applica-
24 tions filed, claims accepted, claims rejected, claims resulting in no
25 award decisions, and claims awarded; and

26 (viii) The average time between the office receiving an application,
27 the determination of eligibility, and the first award to the victim.

28 (c) After December thirty-first, two thousand twenty-five, pursuant to
29 paragraph (a) of subdivision one of section six hundred thirty-one, the
30 annual report shall also include but not be limited to information
31 regarding the records indicating the commission of a crime, including:

32 (i) The number of claims using the records of a support agency for
33 survivors of crime, including disaggregated data denoting the categori-
34 cal type of support agency for survivors of crime; and

35 (ii) The number of claims using the records of a criminal justice
36 agency, including disaggregated data denoting the categorical type of
37 criminal justice agency.

38 (d) The annual report shall also include but not be limited to infor-
39 mation regarding the office's performance of the duty of publicization
40 pursuant to subdivision eighteen-a of this section.

41 § 3. Subdivisions 1 and 1-a of section 625-a of the executive law,
42 subdivision 1 as amended by section 15 of part A-1 of chapter 56 of the
43 laws of 2010, and subdivision 1-a as added by chapter 416 of the laws of
44 1979, are amended to read as follows:

45 1. ~~Every~~ The office shall supply informative booklets, pamphlets and
46 other pertinent written information, including information cards, to
47 every police station, precinct house, support agency for survivors of
48 crime as defined in paragraph (c) of subdivision one of section six
49 hundred thirty-one of this article after December thirty-first, two
50 thousand twenty-five, any appropriate location where a crime may be
51 reported and any location required by the rules and regulations of the
52 office ~~[shall have available informative booklets, pamphlets and other~~
53 ~~pertinent written information, including information cards, to be~~
54 ~~supplied by the office]~~, relating to the availability of crime victims
55 compensation including all necessary application blanks required to be
56 filed with the office and shall ~~[display prominently]~~ provide posters

1 giving notification of the existence and general provisions of this
2 article, those provisions of the penal law that prohibit the intim-
3 idation of crime victims and the location of the nearest crime victim
4 service program. The office ~~[may]~~ shall issue guidelines for the promi-
5 nent display of such posters and the location of such display ~~[and shall~~
6 ~~provide posters, application forms, information cards and general infor-~~
7 ~~mation]~~. Every ~~[victim who reports a crime in any manner whatsoever]~~
8 appropriate location where a crime may be reported shall ~~[be given]~~
9 provide notice about the rights of crime victims and the existence of
10 all relevant local victim's assistance programs and services pursuant to
11 section six hundred twenty-five-b of this article, and ~~[supplied by the~~
12 ~~person receiving the report with information,]~~ supply application
13 blanks~~[,]~~ and information cards which shall clearly state: (a) that
14 crime victims may be eligible for state compensation benefits; (b) the
15 address and phone number of the office; (c) that police and district
16 attorneys can help protect victims against harassment and intimidation;
17 (d) the addresses and phone numbers of local victim service programs,
18 where appropriate, or space for inserting that information; or (e) any
19 other information the office deems appropriate. Such cards shall be
20 printed and distributed by the office and shall be designed by the
21 office in consultation with local police~~[, and shall be printed and~~
22 ~~distributed by the office]~~. The office shall develop a system for
23 distributing a sufficient supply of the information cards referred to in
24 this subdivision, to all the appropriate designated locations, which
25 shall include a schedule for meeting that requirement.

26 1-a. ~~[Every]~~ The office shall supply posters giving notification of
27 the existence and general provisions of this article, application
28 blanks, and general information to every general hospital established
29 under the laws of this state~~[, which]~~ that maintains facilities for
30 providing out-patient emergency medical care, and each such hospital
31 shall display the posters prominently in its emergency room ~~[posters~~
32 ~~giving notification of the existence and general provisions of this~~
33 ~~chapter]~~. The board ~~[may]~~ shall issue guidelines for the location of
34 such display ~~[and shall provide posters, application forms and general~~
35 ~~information regarding the provision of this chapter to each such hospi-~~
36 ~~tal]~~.

37 § 4. Section 631 of the executive law is amended by adding a new
38 subdivision 4-a to read as follows:

39 4-a. Any award made pursuant to this article shall not be reduced by
40 the amount of any payments received or to be received by the claimant as
41 a result of private donations, including but not limited to funds raised
42 through crowdfunding platforms.

43 § 5. This act shall take effect immediately.